

1 ENGROSSED SENATE
2 BILL NO. 1209

By: Kirt of the Senate

3 and

4 Pae of the House
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6 An Act relating to forcible entry and detainer;
7 amending 12 O.S. 2021, Section 1148.4, which relates
8 to issuance and return of summons; modifying time
9 period for certain trial; updating statutory
10 language; making language gender neutral; and
11 providing an effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.4, is
14 amended to read as follows:

15 Section 1148.4. The summons shall be issued and returned as in
16 other cases, except that it shall command the sheriff, or other
17 person serving it, to summon the defendant to appear for trial at
18 the time and place specified ~~therein~~ in the summons, which time
19 shall be not less than five (5) days nor more than ten (10) days,
20 exclusive of Sundays and holidays, from the date that the summons is
21 issued. The summons shall apprise the defendant of the nature of
22 the claim that is being asserted against him or her; and there shall
23 be endorsed upon the summons the relief sought and the amount for
24 which the plaintiff will take judgment if the defendant fails to

1 appear. In all cases, pleadings may be amended to conform to the
2 evidence.

3 SECTION 2. This act shall become effective November 1, 2026.

4 Passed the Senate the 16th day of March, 2026.

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Presiding Officer of the Senate

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8 Passed the House of Representatives the ____ day of _____,
9 2026.

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Presiding Officer of the House
of Representatives

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